

	Industries of California, Inc. Case No. 30-2022-01238888	
53	Liu vs. Le Case No. 30-2023-01319093	Specially Appearing Defendant Lucy Pham Le ("Ms. Le") moves for an order quashing service of summons and complaint on the grounds that she was not properly served. Subsequent to the filing of the motion, Ms. Le was apparently personally served in a manner she deemed satisfactory. (ROA 21). On 6/20/23, Ms. Le made filed an answer and cross-complaint (ROAs 27-28.) CCP §418.10(e)(1) provides that "[n]otwithstanding Section 1014, no act by a party who makes a motion [to quash service or stay or dismiss action] under this section, including filing an answer, demurrer, or motion to strike constitutes an appearance, unless the court denies the motion made under this section. If the court denies the motion made under this section, the defendant or cross-defendant is not deemed to have generally appeared until entry of the order denying the motion." Although the filing of her answer and cross-complaint do not yet constitute a general appearance—due to the fact that Ms. Le filed the instant motion—the only relief sought by way of this motion is for an order that Plaintiff serve Ms. Le correctly. (Mtn. at 11:1-5.) As Ms. Le has already received the relief sought, the motion is DENIED as MOOT. <i>Plaintiff to give notice.</i>
54	Shin vs. An Case No. 30-2023-01328986	Defendant Kenneth H. An ("Defendant") moves to quash service of summons on the grounds that Plaintiff Keum Sook Shin's ("Plaintiff") purported service on him by mail on July 21, 2023 was not made according to any of the statutorily authorized methods. Section 418.10(a)(1) authorizes a defendant to file and serve a notice of motion to quash service of summons on the ground of lack of jurisdiction. When a defendant challenges that jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service." (<i>Dill v. Berquist Construction Co.</i> (1994) 24 Cal.App.4th 1426, 1439-1440.)

		A proof of service filed by Plaintiff on July 24, 2023 indicates that service of summons was purportedly made on Defendant by mail and acknowledgment of receipt of service, with the package being directed at Defendant's counsel. (ROA 25.) This section of the service of summons form relates to Code of Civil Procedure section 415.30, which allows for service of summons by mail when the summons is accompanied by a notice and acknowledgment of receipt and return envelope with postage prepaid. (Code Civ. Proc., § 415.30(a).) Plaintiff's proof of service does not indicate that copies of the notice and acknowledgment of receipt or envelope with prepaid postage were included in the mailed documents, as required. (ROA 25.) Further, though a summons may be served by substituted service, such service must be done at a person's office or usual mailing address and copies must be left with a person at least 18 years of age and/or with a person who is apparently in charge. (Code Civ. Proc., § 415.20(a).) Substituted service may only be made when the summons cannot with reasonable diligence be personally delivered to the person to be served. (Id. § 415.20(b).) Here, the proof of service indicates that service was purportedly made by mail only, making it inadequate for proper substituted service. Further, service on counsel would not constitute proper substituted service, as it would not be made at Defendant's office or usual place of mailing. Without proper service of summons, the Court lacks jurisdiction over Defendant. (<i>Kremerman v. White</i> (2021) 71 Cal.App.5th 358, 371 ["[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction."].) In light of the above, Defendant's unopposed Motion to Quash is GRANTED. <i>Defendant to give notice.</i> Parties should be prepared to go forward with the case management conference.
55	Honarkar vs. The Picerne Group, Inc. Case No. 30-2021-01208258	<i>Off-calendar.</i>